

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                                                                      |                                                                                                                               |                               |                                                       |                                               |                                 |
|------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------|-------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Kelly Lyon                                                                                                                          | Team:<br>Squad #11                                                                                                            | CCRB Case #:<br>202203578     | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                                                                                      |                                                                                                                               |                               | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 05/04/2022 10:07 PM,<br>Wednesday, 05/04/2022 10:14 PM, Friday,<br>05/06/2022 9:45 PM, Friday, 05/06/2022<br>10:40 PM | Location of Incident:<br>Kings Hwy & Utica Ave; 63rd PCT<br>stationhouse, Church Ave & East 96th St;<br>67th PCT stationhouse | 18 Mo. SOL<br>11/4/2023       | Precinct:<br>63                                       |                                               |                                 |
| Date/Time CV Reported<br>Fri, 06/03/2022 3:56 PM                                                                                                     | CV Reported At:<br>CCRB                                                                                                       | How CV Reported:<br>In-person | Date/Time Received at CCRB<br>Fri, 06/03/2022 3:56 PM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. SGT Eudy Santos    | 02084  | 952214 | 067 PCT |
| 2. SGT Philip Ditto   | 03147  | 932557 | 067 PCT |
| 3. SGT Matthew Gilson | 01336  | 950499 | 063 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. PO Derick Dejonge    | 17572     | 968372 | 067 PCT  |
| 2. PO Jonathon Perez    | 19449     | 964209 | 063 PCT  |
| 3. PO Kevin Herrera     | 12928     | 964556 | 067 PCT  |
| 4. PO Delaney Warner    | 15972     | 967720 | 067 PCT  |
| 5. SGT Claude Dorsaint  | 00405     | 934791 | 067 PCT  |
| 6. PO Nicholas Cardieri | 11420     | 965968 | 067 PCT  |
| 7. SGT Mingwei Gao      | 02064     | 953891 | 067 PCT  |
| 8. PO James Saintil     | 19689     | 953357 | 063 PCT  |
| 9. PO Nilsa Nagle       | 31173     | 940567 | 063 PCT  |

| Officer(s)             | Allegation                                                                                                                 | Investigator Recommendation |
|------------------------|----------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . SGT Matthew Gilson | Abuse: On May 4, 2022, at Kings Highway and Utica Avenue in Brooklyn, Sergeant Matthew Gilson seized § 87(2)(b) property.  | A . Within NYPD Guidelines  |
| B . SGT Matthew Gilson | Discourtesy: On May 4, 2022, at the 63rd Precinct stationhouse, Sergeant Matthew Gilson spoke discourteously to § 87(2)(b) | B . Substantiated           |
| C . SGT Matthew Gilson | Abuse: On May 4, 2022, at the 63rd Precinct stationhouse, Sergeant Matthew Gilson threatened to arrest § 87(2)(b)          | C . Substantiated           |
| D . SGT Eudy Santos    | Abuse: On May 6, 2022, at Church Avenue and East 96th Street in Brooklyn, Sergeant Eudy Santos seized § 87(2)(b) property. | D . Within NYPD Guidelines  |
| E . SGT Philip Ditto   | Discourtesy: On May 6, 2022, at the 67th Precinct stationhouse, Sergeant Philip Ditto spoke discourteously to § 87(2)(b)   | E . Substantiated           |

### Case Summary

On June 3, 2022, § 87(2)(b) filed this complaint with the CCRB in person. On July 28, 2022, § 87(2)(b) filed a duplicate complaint online with the Office of the Police Commissioner.

On May 4, 2022, at approximately 10:07 p.m., § 87(2)(b) was pulled over in the vicinity of Kings Highway and Utica Avenue in Brooklyn by PO Jonathan Perez and PO James Saintil of the 63<sup>rd</sup> Precinct. PO Perez requested a supervisor and Sgt. Matthew Gilson and PO Nilsa Nagle of the 63<sup>rd</sup> Precinct responded to the location. Sgt. Gilson approved § 87(2)(b) arrest, and PO Saintil transported the vehicle to the 63<sup>rd</sup> Precinct stationhouse (**Allegation A: Abuse of Authority, Within NYPD Guidelines**).

At approximately 10:14 p.m., PO Perez, PO Saintil, Sgt. Gilson, and PO Nagle arrived at the 63<sup>rd</sup> Precinct stationhouse with § 87(2)(b) was standing on top of his own vehicle which was parked near the stationhouse waiting for his friend to pick him up. Sgt. Gilson asked § 87(2)(b) whether the vehicle belongs to him and said, "So why the fuck you standing on it?" (**Allegation B: Discourtesy, Substantiated**). The officers brought § 87(2)(b) inside and several minutes later, Sgt. Gilson returned to the parking lot and threatened to arrest § 87(2)(b) for standing on his vehicle (**Allegation C: Abuse of Authority, Substantiated**). § 87(2)(b) was later released, and his vehicle was returned to him.

On May 6, 2022, at approximately 9:45 p.m., § 87(2)(b) was driving in the vicinity of Church Avenue and East 96<sup>th</sup> Street in Brooklyn when he was pulled over by Sgt. Eudy Santos, PO Derek Dejonge, PO Kevin Herrera, and PO Delaney Warner of the 67<sup>th</sup> Precinct. § 87(2)(b) was arrested, and PO Herrera transported his vehicle to the 67<sup>th</sup> Precinct stationhouse (**Allegation D: Abuse of Authority, Within NYPD Guidelines**).

At the 67<sup>th</sup> Precinct stationhouse, § 87(2)(b) threw himself to the ground in front of the desk. Sgt. Philip Ditto assisted PO Dejonge and PO Warner in bringing § 87(2)(b) to the holding cell, during which he stated, "You're a fucking grown man. Fucking child, fucking grown man acting like a fucking kid, fucking [...]. Fucking grown man" (**Allegation E: Discourtesy, Substantiated**).

§ 87(2)(b) was arrested for illegal possession of a vehicle identification number on both May 4, 2022, and May 6, 2022 (**BR 01 and BR 02**). § 87(2)(b) was arrested for operating a motor vehicle with a suspended license (**BR 03**).

The investigation obtained eight body-worn camera videos for May 4, 2022 from PO Perez, PO Saintil, Sgt. Gilson, and PO Nagle (**BR 04; videos, BR 05, BR 06, BR 07, and BR 08; summaries**) and 13 videos for May 6, 2022 from Sgt. Santos, PO Dejonge, PO Herrera, PO Warner, Sgt. Claude Dorsaint, PO Nicholas Cardieri, Sgt. Ditto, and Sgt. Mingwei Gao of the 67<sup>th</sup> Precinct (**BR 09, BR 10, BR 11, BR 12, BR 13, BR 14, BR 15, BR 16, BR 17, BR 18, BR 19, BR 20, and BR 21; videos, BR 22, BR 23, BR 24, BR 25, BR 26, BR 27, BR 28, BR 29, BR 30, BR 31, BR 32, and BR 33; summaries**).

### Findings and Recommendations

**Allegation (A) Abuse of Authority: On May 4, 2022, at Kings Highway and Utica Avenue in Brooklyn, Sergeant Matthew Gilson seized § 87(2)(b) property.**

§ 87(2)(b) stated (**BR 34**) that on May 4, 2022, at approximately 10:07 p.m., in the vicinity of the northeast corner of Kings Highway and Utica Avenue in Brooklyn, officers from the 63<sup>rd</sup> Precinct pulled him over, arrested him, seized his vehicle, and released him with a desk appearance ticket. § 87(2)(b) got his vehicle back when he was released. § 87(2)(b) was in possession of two temporary New Jersey plates. After the officers seized his temporary plate during this incident, he replaced the first temporary plate with the second one. § 87(2)(b) had purchased his vehicle from an individual in Maryland six weeks prior to the incident and obtained the temporary plates from Maryland as well.

Sgt. Gilson (**BR 35**) was called by PO Perez over the phone to the vicinity of Kings

Highway and Utica Avenue in Brooklyn because PO Perez had a vehicle stop that he believed to be an arrest. The motorist, § 87(2)(b) was stopped for a moving violation and PO Perez believed he had a fake license plate. PO Perez showed evidence on his phone confirming that the license plate was fake, and the officers effected the arrest. Per procedure, the vehicle was brought to the 63<sup>rd</sup> Precinct stationhouse for safekeeping and the license plate was vouched for arrest evidence.

Sgt. Gilson's first body-worn camera video (BR 36: video, BR 06: summary) shows at 1:10 minutes, Sgt. Gilson arriving to the location. PO Saintil shows Sgt. Gilson an image of a New Jersey temporary license plate on his cell phone and explains to Sgt. Gilson that the license plate should contain a QR code, but § 87(2)(b) does not. PO Perez explains to Sgt. Gilson that that they called New Jersey State Police to verify § 87(2)(b) temporary New Jersey license and it yielded no results. PO Perez asks Sgt. Gilson, "92?" and Sgt. Gilson approves the arrest. At 7:12 minutes, after § 87(2)(b) has been handcuffed and taken to the police vehicle. The officers discuss transporting § 87(2)(b) vehicle. PO Nagel suggests PO Saintil could drive the vehicle and Sgt. Gilson says, "Okay."

§ 87(2)(b) arrest report (BR 01) stated that § 87(2)(b) was stopped after officers observed § 87(2)(b) making a U-turn and having a defective head lamp. Upon further investigation, the officers discovered that the license plate was forged per New Jersey State Police. § 87(2)(b) top charge was illegal possession of a vehicle identification number.

NYPD Patrol Guide procedure 218-19 (BR 37) states when a vehicle comes into police custody it may be held to determine the true owner of the vehicle.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as *Within NYPD Guidelines*.

**Allegation (B) Discourtesy: On May 4, 2022, at the 63rd Precinct stationhouse, Sergeant Matthew Gilson spoke discourteously to § 87(2)(b)**

**Allegation (C) Abuse of Authority: On May 4, 2022, at the 63rd Precinct stationhouse, Sergeant Matthew Gilson threatened to arrest § 87(2)(b)**

§ 87(2)(b) (BR 38) was arrested for driving with a suspended license and was released with a Desk Appearance Ticket (DAT). § 87(2)(b) was not permitted to drive his vehicle home, so he called a friend to pick him up. § 87(2)(b) vehicle was parallel parked in the street in front of a house one to two buildings next to the stationhouse. § 87(2)(b) van was blocking traffic. § 87(2)(b) friend called him and told him he was down the block on his way, so § 87(2)(b) stood on the hood of his vehicle to see whether he could see his friend past the traffic. § 87(2)(b) made no erratic movements, did not move his arms, and did not jump up and down. § 87(2)(b) was speaking on the phone but otherwise not making noise.

Sgt. Gilson, who arrived with § 87(2)(b) walked up, looked at § 87(2)(b) and pointed at him. Sgt. Gilson said, "Who's this guy over here," to another officer. § 87(2)(b) said, "Hi, hello, is there a problem?" Sgt. Gilson said, "Why are you standing on a car?" and § 87(2)(b) explained that his friend was picking him up and he had his DAT receipt with him.

Approximately one minute later, five to six officers came outside and started harassing § 87(2)(b) about getting off his vehicle. Sgt. Gilson said something about disorderly conduct and that he would revoke § 87(2)(b) DAT and put him back in the cell which § 87(2)(b) understood to mean they would arrest him again. § 87(2)(b) explained that the vehicle belonged to him, and he was waiting for his friend and was just trying to see down the block. § 87(2)(b) friend arrived; § 87(2)(b) got into the vehicle and left.

As Sgt. Gilson (BR 35) approached the stationhouse, he observed § 87(2)(b) jumping on a vehicle, which he believed to be an officer's personal vehicle because it was parked in front of the stationhouse. § 87(2)(b) stated that it was his own vehicle however no one verified that it was.

Sgt. Gilson yelled at § 87(2)(b) to "Get off the fucking car," because it could damage the



vehicle and it was creating a scene because it was not normal to stand on top of vehicle. Sgt. Gilson used the word “fucking” to get § 87(2)(b) attention. Sgt. Gilson did not recall any civilians gathering or whether § 87(2)(b) was creating public alarm. Sgt. Gilson was alarmed because it was not normal behavior. Sgt. Gilson did not recognize the vehicle but believed it was an officer’s personal vehicle because it was parked in front of the stationhouse.

Sgt. Gilson told § 87(2)(b) he could be arrested if he did not comply. § 87(2)(b) could have been arrested for disorderly conduct for his behavior and refusing a lawful order, and criminal mischief if he damaged the vehicle. § 87(2)(b) refused at first and eventually complied.

Sgt. Gilson’s second body-worn camera video (BR 39; video, BR 08; summary) opens with Sgt. Gilson outside of the stationhouse. PO Perez and PO Nagel are parking their police vehicle as Sgt. Gilson walks toward them. At 00:33 seconds, § 87(2)(b) is shown standing in the street in front of his vehicle which is also parked in the street, in front of a house which is next door to the stationhouse. At 1:00 minute, Sgt. Gilson asks § 87(2)(b) who is now standing on the hood of his vehicle, “Is that your car?” Sgt. Gilson also asks for ID. At 1:10 minutes, Sgt. Gilson says, “So why the fuck you standing on it?” and § 87(2)(b) says, “Because I own it,” and continues to stand on the hood of his vehicle. § 87(2)(b) is escorted inside and the video ends.

Sgt. Gilson’s third body-worn camera video (BR 40; video, BR 08; summary) shows at 00:50 seconds, Sgt. Gilson approaching § 87(2)(b) and says, “If you don’t get off the car, you’re getting arrested – going again for disorderly conduct.” § 87(2)(b) complies and gets off the hood of his vehicle. There are several officers standing outside of the stationhouse and no civilians.

In DAO-DCT Case Number 2018-18951 (BR 41) the tribunal acknowledged that there are certain situations where profane remarks made during a stressful or chaotic situation would not constitute misconduct, however, gratuitous use of profanity made during a situation that is not stressful or chaotic was considered unprofessional.

NYPD Patrol Guide procedure 200-02 (BR 42) states that officers are to render their services with courtesy and civility.

New York State Penal Law § 240.20 (BR 43) states a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof: engages in fighting or in violent, tumultuous, or threatening behavior; makes unreasonable noise; uses abusive or obscene language in a public place; disturbs any lawful assembly; obstructs pedestrian or vehicular traffic; congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.

§ 87(2)(g) Sgt. Gilson’s body-worn camera footage showed that Sgt. Gilson stated, “So why the fuck you standing on it?” to § 87(2)(b) while he was simply standing on the hood of his vehicle § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation B** be *substantiated*.

§ 87(2)(g) Sgt. Gilson’s body-worn camera footage showed that § 87(2)(b) vehicle was not parked in the stationhouse parking lot, § 87(2)(b) was not jumping on the vehicle or making any unreasonable noise, § 87(2)(b) never disobeyed any lawful orders, complied when asked to get off the vehicle, and there were no bystanders, § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation C** be *substantiated*.

**Allegation (D) Abuse of Authority: On May 6, 2022, at Church Avenue and East 96th Street in Brooklyn, Sergeant Eudy Santos seized § 87(2)(b) property.**

§ 87(2)(b) stated (BR 34) that on May 6, 2022, Sgt. Santos, PO Dejonge, PO Herrera, and PO Warner pulled him over in the vicinity of Church Avenue and East 96th Street and immediately arrested him. One of the officers drove § 87(2)(b) vehicle to the 67th Precinct stationhouse, but he was not sure which one. § 87(2)(b) received a property voucher for his vehicle.

Sgt. Santos was not interviewed for this incident because the body-worn camera footage

was comprehensive, and his statement would not have changed the recommended disposition.

Sgt. Santos' body-worn camera footage (BR 12: video, BR 29: summary) shows at 2:00 minutes, Sgt. Santos taking a photo of § 87(2)(b) New Jersey temporary license plate which is taped onto the back of the vehicle. At 4:11 minutes, PO Warner calls the New Jersey State Police to run the New Jersey temporary license plate which yields no results. Beginning at 6:45 minutes, Sgt. Santos, PO Warner, and PO Dejonge discover via their department issued cellphones that § 87(2)(b) was arrested two days prior for the same license plate and Sgt. Santos approves the arrest. At 10:11 minutes, PO Herrera gets in the vehicle to transport it to the 67<sup>th</sup> Precinct stationhouse.

§ 87(2)(b) arrest report (BR 02) stated that officers observed § 87(2)(b) driving with plates improperly secured with duct tape and upon stopping him § 87(2)(b) stated in sum and substance that he purchased the plate from his brother who buys paper plates on Facebook Marketplace. The license plate was determined to be forged and not issued per the State of New Jersey Department of Motor Vehicle records. § 87(2)(b) top charge was illegal possession of a vehicle identification number.

NYPD Patrol Guide procedure 218-19 (BR 37) states when a vehicle comes into police custody it may be held to determine the true owner of the vehicle.

§ 87(2)(g)

§ 87(2)(b) it is recommended that Allegation D be closed as *Within NYPD Guidelines*.

**Allegation (E) Discourtesy: On May 6, 2022, at the 67th Precinct stationhouse, Sergeant Philip Ditto spoke discourteously to § 87(2)(b)**

§ 87(2)(b) did not allege any discourtesies at the 67<sup>th</sup> Precinct stationhouse, however, the discourteous remarks were captured on body-worn camera footage.

Sgt. Ditto (BR 44) went to the 67<sup>th</sup> Precinct stationhouse to use the restroom when he observed PO Dejonge and PO Warner at the desk with § 87(2)(b) was loud, belligerent, and yelling the word "faggot" multiple times toward the officers. § 87(2)(b) stated something to the effect "I'm not a damn little kid," and threw himself to the ground. This reminded Sgt. Ditto of a child throwing a temper tantrum.

Sgt. Ditto went over to assist PO Dejonge, PO Warner, and PO Cardieri to try and have § 87(2)(b) stand up. Sgt. Ditto stated something to the effect, "You are a fucking little kid." Sgt. Ditto was trying to gain compliance. Sgt. Ditto explained during his CCRB interview, "It was just the heat of the moment, I have no justifiable excuse for using it." Sgt. Ditto and the officers carried § 87(2)(b) to the holding cells and that was the end of Sgt. Ditto's interaction with § 87(2)(b) Sgt. Ditto was not involved in § 87(2)(b) arrest.

Sgt. Ditto's body-worn camera footage (BR 15: video, BR 32, summary) shows at 00:42 seconds, § 87(2)(b) throwing himself to the ground. Sgt. Ditto assists PO Dejonge, PO Warner, and PO Cardieri in escorting § 87(2)(b) to the holding cell during which Sgt. Ditto says, "You're a fucking grown man. Fucking child, fucking grown man acting like a fucking kid, fucking [...]. Fucking grown man."

DAO-DCT Case Number 2015-15012 (BR 45) found that officers are not permitted to make discourteous remarks when it serves no legitimate purpose but to belittle the civilian.

NYPD Patrol Guide procedure 200-02 (BR 42) states that officers are to render their services with courtesy and civility.

§ 87(2)(g)

§ 87(2)(b) it is recommended that Allegation E be *substantiated*.

### Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (BR 47).
- Sgt. Gilson has been a member of service for 11 years and named a subject in four additional CCRB complains and 11 allegations, one of which was substantiated.
  - 202104384 involved a substantiated allegation of a threat of arrest. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B.
- Sgt. Santos has been a member of service 11 years and named a subject in six additional CCRB complaints and seven allegations, none of which have been substantiated.
- Sgt. Ditto has been a member of service for 19 years and named a subject in 16 additional CCRB complaints and 37 allegations, none of which have been substantiated.

### Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 16, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (BR 48).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

Squad: 11

Investigator: Kelly Lyon Inv. Kelly Lyon 7/6/2023  
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 07/06/23  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date